

Senate of the Republic
2nd Commission
AS 824 and related (Regulations on the prevention of surrogacy)
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I thank the Commission for the invitation to this hearing, which allows me to revisit a topic on which I had the opportunity to intervene in the Chamber as well. The text approved in the first reading has, moreover, been refined precisely in the parts where doubts had been raised, including by myself, thus significantly improving the proposed regulation, in the terms that I will present.

1. The regulatory and jurisprudential context

The bills under discussion, despite differences that we will examine, are united by the intention to ensure the effectiveness of the prohibition of surrogacy. This is penalized by Article 12, paragraph 6, of Law 40 of 2004, although it is often circumvented by the phenomenon of "procreative tourism." Indeed, cases of gestation for others "commissioned" by Italian citizens abroad, in countries where such practice is legitimate, are frequent.

The validity of this provision has not been called into question by the ruling 162/2014, in which the Constitutional Court declared part of the prohibition of heterologous fertilization from 2004 unconstitutional.

However, the conduct of procreative tourism is not currently punishable. In particular, the jurisprudence of legitimacy requires, for the application of Italian law to the crime committed (in part) abroad under Article 6, second paragraph, of the Penal Code, that "even just a fragment of the conduct" occurs within the territory of the State, provided it is significant and univocally connected to the remaining part carried out in foreign territory, which cannot be integrated merely by the intention to commit the crime abroad, even if it is then fully realized there (see, lastly, Cass. pen., Sez. III, n. 5198 of 2021; Cass. pen., Sez. VI, n. 56953 of 2017, Cass. pen., Sez. III, n. 35165 of 2017, Cass. pen., Sez. V, n. 13525 of 2016).

Also regarding the different (but connected) aspect of the transcription of the birth certificates of children born abroad through surrogacy, the configurability of the crime under Article 567, second paragraph, of the Penal Code (alteration of the civil status of a newborn through false certifications, false attestations, or other falsities) has been excluded in the case of birth declarations made pursuant to Article 15 of D.P.R. No. 396 of 2000, made to the consular authority based on a certificate drawn up by local authorities indicating the intended parents as parents, in accordance with the norms established by *lex loci* (see Cass. pen., Sez. VI, n. 31409 of 2020; Cass. pen., Sez. V, n. 13525 of 2016; Cass. pen., Sez. VI, n. 48696 of 2016).

Conversely, in civil matters, the transcription in Italy of the birth certificate from surrogacy drawn up abroad has been excluded due to contrariety to public order, considering that surrogacy conflicts with the "constitutionally guaranteed protection of the human dignity of the gestational mother" and that "in the superior interest of the minor, the legal system entrusts the realization of a parenthood project devoid of biological ties to the institute of adoption - which enjoys the guarantees of the judicial procedure - and not to the mere agreement between the parties" (Cass., ruling No. 24001 of 2014; see also Cass., SSUU, ruling No. 12193 of 2019, according to which the legal goods protected by the prohibition of surrogacy - the dignity of the gestational mother primarily - prevail, in the legislative option, over the interest of the minor to see recognized, even in the absence of a biological link, the relationships developed with the individuals who take care of them).

Similarly, with ruling No. 272 of 2017, the Constitutional Court emphasized "the high degree of disvalue that our legal system associates with surrogacy, prohibited by a specific penal provision" as a practice that "intolerably offends the dignity of women and profoundly undermines human relationships."

Furthermore, with ruling No. 33 of 2021, the Constitutional Court, while declaring the question of

legitimacy regarding the transcription of the birth certificate of a child born from surrogacy abroad inadmissible, reaffirming the impossibility of recognizing in Italy a foreign judicial provision that attributes parental status to the intended parents, underscored the urgency of a legislative intervention that balances the need to disincentivize recourse to surrogacy and that of ensuring respect for the rights of the born.

The European Court of Human Rights, with its advisory opinion of April 15, 2019, while emphasizing the need for normative recognition of the relationship (relevant under Article 8 ECHR) between the intended parent and the child born from gestation for others, specified that this does not necessarily presuppose the transcription of the birth certificate in the State of origin, and that different solutions could also be hypothesized, provided they respect the superior interest of the minor. This latter aspect, also valued by the Constitutional Court in balancing with other relevant legal interests, is certainly a topic to be considered, as the protection of the minor must be guaranteed "regardless of the modalities of their conception" (as highlighted in the order referring the question of legitimacy decided with ruling 32/21).

2. The Draft Laws

The draft laws under discussion aim to guarantee effective protection for the legal good (the dignity of women) safeguarded by the incriminating norm referred to in Article 12, paragraph 6, of Law 40/2004, extending (in accordance with the provisions of Article 7 of the Penal Code) the application of the incriminating norm to conduct committed abroad by Italian citizens, with reference to surrogacy (AS 824, following the modifications, which are entirely agreeable, made in the first reading).

The draft laws AS 245 and 163 (respectively: Gasparri and Rauti-Malan), like the initial bill Varchi, now AS 824, promote this extension to acts committed abroad by anyone, despite the accompanying report referring in both cases to acts committed by Italian citizens. Furthermore, draft law 163 obliges Italian diplomatic and consular authorities, in the case of children born abroad to Italian citizens, and civil status offices, when proceeding with the legalization of birth documents, to inquire whether the birth occurred through surrogacy abroad. Draft law 475 (Romeo), on the other hand, extends the applicability of the crime of alteration of status to the public official who records in the civil status registers a child born from surrogacy.

Beyond these differences, which we will return to, the rationale of the proposed laws is to make effective the prohibition of surrogacy by countering its evasion made possible by reproductive tourism to countries (currently about 18) where this practice is not punished. In particular, these include Armenia, Belarus, Georgia, Russia, Ukraine, and South Africa, which allow its use for commercial as well as solidarity purposes, while the United Kingdom, Israel, Romania, Brazil, Portugal, Argentina, Bangladesh, Thailand, Australia, Greece, and Canada permit it only in a non-remunerative form. In principle, the extension of the extraterritorial application of internal incriminating norms to acts committed abroad is possible concerning the crimes referred to in Article 7 of the Penal Code, characterized by particular gravity – such as, for example, crimes against the personality of the State – as well as for any other crime for which such extension is provided by special legal provisions or international conventions. Articles 9 and 10 of the Penal Code then outline further conditions respectively for the punishability of the common crime of the Italian citizen abroad (presence in the territory of the State, penalty of life imprisonment or imprisonment not less than three years or, alternatively, request of the Minister of Justice, or request for proceedings or complaint by the injured party) and of the foreign citizen abroad against the State or against an Italian citizen (penalty of life imprisonment or imprisonment not less than one year, presence of the offender in the territory of the State and request for proceedings by the Minister of Justice or the injured party) or even against the European Communities, a foreign State, or a foreigner but only if punished with life imprisonment or with imprisonment not less than three years and provided that the extradition of the author has not been granted by the Italian State or accepted by the State where the crime was committed or by the State to which the author belongs.

The question of the necessity or otherwise of double incrimination for the punishability of the common crime committed abroad by the Italian citizen is controversial (in the absence of a uniform jurisprudence), which undoubtedly affects the effectiveness of the provision and, therefore, the real chances of prosecuting the crime.

On one hand, in fact, some rulings limit this principle to extradition alone and, regarding crimes committed abroad and the renewal of judgment, argue that the qualification of criminal offenses must occur exclusively according to Italian criminal law, regardless of whether the *lex loci* does not provide for the punishability of the same act (Cass. Sez. II, No. 2860 of 06/12/1991).

On the other hand, it has been held elsewhere that, regarding crimes committed abroad, outside the cases explicitly indicated in Article 7 of the Penal Code, it is an indispensable condition for the prosecution of crimes committed abroad by foreigners that they are punishable as criminal offenses, not only under Italian criminal law but also under the legal system of the place where they were committed, even if with different *nomen iuris* and penalties (Cass. Sez. I, No. 38401 of 17/09/2002; No. 13525 of 10/03/2016, with emphasis on the normative conception of the principle of culpability as specified by ruling 364/1988 of the Constitutional Court).

3. Some Possible Indications

In any case, the parameters generally provided by Articles 9 and 10 of the Penal Code prefer a solution (such as that envisaged by the Varchi bill following the first reading) that limits the extraterritorial application of Italian criminal law to the crime committed by an Italian citizen abroad, since Article 10 refers, for the punishability of the crime committed abroad by a foreigner, to crimes against the State or against an Italian citizen or, for different crimes, to higher penalty frameworks, thus grounding Italian jurisdiction on acts expressive of a significant social disvalue or otherwise connected with the interests of the Italian State.

This, however, remains without prejudice to the fact that the broader formulation of bills AS 245 and 163, which does not expressly limit extraterritorial punishability to acts committed solely by Italian citizens, does not seem entirely coherent with the report and, therefore, could be the result of a mere *lapsus calami*. An alternative solution (suggested, for example, by bill AS 475) could also be to replicate the model established by Article 604 of the Penal Code for crimes against individual personality and sexual freedom, whose incriminating norms apply when the act is committed abroad by an Italian citizen, or to the detriment of an Italian citizen, or again by a foreigner in collaboration with an Italian citizen (in this latter case, the foreigner is punishable only for those crimes of that category whose maximum penalty is not less than five years and in the presence of a request from the Minister of Justice).

An additional aspect, worthy of consideration, concerns the implications for the born child of the extraterritorial extension of the incrimination of resorting to surrogacy. In other words, the commendable need to make this prohibition effective, countering reproductive tourism, should also contemplate an adequate safeguard clause for the rights of children born from such procedures, which is lacking in the framework of Law 40/04 despite the prohibition (Article 9) against the denial of the minor born from heterologous fertilization, originally configured as illicit *tout court*. This norm intended to prevent any circumvention of the prohibition of heterologous fertilization through, once again, reproductive tourism, from resulting in a denial of protection for the minor thus born.

Therefore, a similar norm should be hypothesized also for the child born from gestation for others, enhancing the principles established by the Constitutional Court's ruling 494/01 regarding the status of filiation of children born from incest or, in any case, from ruling 33/2021 on surrogacy, according to which "[t]he task of adapting the existing law to the needs of protecting the interests of children born from surrogacy – in the context of the difficult balancing between the legitimate aim of disincentivizing recourse to this practice, and the indispensable need to ensure respect for the rights of minors, in the terms specified above – can only fall, in the first instance, to the legislator, who must be recognized a significant margin of maneuver in identifying a solution that addresses all the rights and principles at stake," "[i]n light of the range of possible options, all compatible with the Constitution and all involving interventions on matters of great systematic complexity, this Court can only, at this time, stop and dutifully yield to the discretion of the legislator, in the now unavoidable identification of solutions capable of remedying the current situation of insufficient protection of the interests of the minor."

A similar protection would also seem to be imposed by conventional jurisprudence, which, in reviewing the legitimacy of the norms on gestation for others, always emphasizes the need to guarantee the

effective protection of the superior interest of the child born from such practice, to avoid that the prejudicial consequences of violations of norms committed by the intended parents fall upon him.

Thank you for your attention.